

24STCV08288 24STCV08288

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-17

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Case Number: 24STCV08288 Hearing Date: August 17, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

17, 2026 TRIAL DATE: August 2, 2027

CASE: Mike Tehrani, et al. v. Mehrdad Adjari

CASE NO.: 24STCV08288

PURE

ECO, INC.'S DEMURRER TO SECOND AMENDED COMPLAINT

MOVING

PARTY: Defendant Pure Eco, Inc.

RESPONDING

PARTY: Plaintiffs Mike Tehrani and Eskin

Builders Corp.

This case concerns the property located at 12428 Laurel Terrace Drive, Studio City, California 91604 (the Property). Defendant Mehrdad Adjari (Adjari) is the owner of the Property. In 2021, Adjari and plaintiffs Mike Tehrani and Eskin Builders, Corp. (Plaintiffs) entered into a written contract wherein Plaintiff agreed to provide labor, services, equipment, or materials for a construction project on the Property. Plaintiffs completed the work. Adjari failed to pay Plaintiffs for the amount due.

On April

16, 2026, Adjari filed the operative First Amended Cross-Complaint against Plaintiffs for breach of contract and negligence.

On February 20, 2026, Plaintiffs filed the operative Second

Amended Complaint ("SAC") alleging twenty-one causes of action. For the first time, Plaintiffs name Pure Eco, Inc. ("Pure Eco") in the SAC as a defendant.

Pure Eco performed construction work on a portion of the Property.

On June 17,

2026, Pure Eco filed a demurrer to the 14th-20th causes of action in the SAC.

On July 15,

2026, Plaintiffs filed an opposition.

On July 21,

2026, Pure Eco filed a reply.

The

demurrer was heard on July 28, 2026.

After oral argument, the court adopted the tentative ruling finding that

Pure Eco did not meet and confer prior to filing this demurrer. The court continued the hearing and directed the parties to meet and confer. The

court also directed the parties to file a supplemental opposition or

supplemental reply pursuant to Code of Civil Procedure section 1005. Alternatively, Pure Eco was to file a status report no later than 5 court days before the hearing indicating whether the court should rule on the demurrer based on the current briefing.

At the time

of this writing, no supplemental briefing or status report has been filed with the court.

Based on

the foregoing, the hearing for the demurrer is CONTINUED to September 14, 2026. The parties are ordered to meet

and confer within 5 court days of this order and to submit a status report no later than 5 court days before the hearing.

The court also sets an OSC Re: Failure to Meet and Confer for September 14, 2026. No less than 10 court days before the OSC, Pure Eco is ordered to file a response to the OSC explaining why they failed to meet and confer and/or failed to file a status report in violation of the court's July 28, 2026 order.

Demurring
party to give notice.

Dated: August 17, 2026

Brock T. Hammond

Judge of
the Superior Court